

reasonable investigation at that time would not have revealed a factual basis for that particular cause of action.” (*Id.* at 803.) A plaintiff invoking delayed discovery bears the burden of pleading and proving reasonable diligence—that, despite diligent investigation of the circumstances of the injury, he could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period. (*Id.* at 808.)

Plaintiff’s own declaration establishes inquiry notice facts well before May 2024. He experienced overheating and loss of power on February 21, 2020, resulting in a warranty water pump repair. (Christensen Decl. ¶ 9.) He experienced multiple hybrid-system trouble codes and an intermittent no-start condition on January 12, 2022, resulting in battery replacement. (*Id.* at ¶ 10; DSS ¶¶ 9–10.) And he experienced a check-engine light with a no-start condition serious enough to require jump starts on January 26, 2023, resulting in a further battery replacement. (Christensen Decl. ¶ 11; DSS ¶¶ 12–13.) By January 2023, nearly two years before the November 12, 2024 filing, Plaintiff was on inquiry notice of a suspected warranty covered defect. Under *Jolly* and *Fox*, that suspicion started the limitations clock; Plaintiff was not entitled to wait for the May 2024 catastrophic failure to confirm what he had reason to suspect years earlier. (*Jolly, supra*, 44 Cal.3d at 1110; *Fox, supra*, 35 Cal.4th at 803.) Plaintiff pleads no facts and offers no evidence of a diligent investigation that would excuse the delay. On the Song-Beverly claims (four years) and the fraud claim (three years), the November 12, 2024 filing is untimely.

The Court GRANTS summary adjudication on the first, second, third, fourth, and sixth causes of action on statute of limitations grounds.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600364	ROJAS vs SWEEPING CORPORATION OF AMERICA, LLC	MOTION TO COMPEL DEFENDANT SWEEPING CORPORATION OF AMERICA'S RESPONSES TO FORM INTERROGATORIES, SET ONE

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.